

SENATE BILL NO. 402

INTRODUCED BY D. LENZ

A BILL FOR AN ACT ENTITLED: "AN ACT PROVIDING FOR CASE DETERMINATIONS OF INVESTIGATIONS OF REPORTED CHILD ABUSE OR NEGLECT; PROVIDING FOR DEFINITIONS OF "SUBSTANTIATED", "UNSUBSTANTIATED", AND "UNFOUNDED"; AND AMENDING SECTION 41-3-102, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 41-3-102, MCA, is amended to read:

"41-3-102. (Temporary) Definitions. As used in this chapter, the following definitions apply:

(1) ~~— (a) "Abandon", "abandoned", and "abandonment" mean:~~

~~(i) — leaving a child under circumstances that make reasonable the belief that the parent does not intend to resume care of the child in the future;~~

~~(ii) — willfully surrendering physical custody for a period of 6 months and during that period not manifesting to the child and the person having physical custody of the child a firm intention to resume physical custody or to make permanent legal arrangements for the care of the child;~~

~~(iii) — that the parent is unknown and has been unknown for a period of 90 days and that reasonable efforts to identify and locate the parent have failed; or~~

~~(iv) — the voluntary surrender, as defined in 40-6-402, by a parent of a newborn who is no more than 30 days old to an emergency services provider, as defined in 40-6-402.~~

~~(b) — The terms do not include the voluntary surrender of a child to the department solely because of parental inability to access publicly funded services.~~

(2) ~~— "A person responsible for a child's welfare" means:~~

~~(a) — the child's parent, guardian, or foster parent or an adult who resides in the same home in which the child resides;~~

~~(b) — a person providing care in a day-care facility;~~

1 (c) — an employee of a public or private residential institution, facility, home, or agency; or

2 (d) — any other person responsible for the child's welfare in a residential setting.

3 (3) — "Abused or neglected" means the state or condition of a child who has suffered child abuse or
4 neglect.

5 (4) — (a) "Adequate health care" means any medical care or nonmedical remedial health care
6 recognized by an insurer licensed to provide disability insurance under Title 33, including the prevention of the
7 withholding of medically indicated treatment or medically indicated psychological care permitted or authorized
8 under state law.

9 (b) — This chapter may not be construed to require or justify a finding of child abuse or neglect for the
10 sole reason that a parent or legal guardian, because of religious beliefs, does not provide adequate health care
11 for a child. However, this chapter may not be construed to limit the administrative or judicial authority of the
12 state to ensure that medical care is provided to the child when there is imminent substantial risk of serious harm
13 to the child.

14 (5) — "Best interests of the child" means the physical, mental, and psychological conditions and
15 needs of the child and any other factor considered by the court to be relevant to the child.

16 (6) — "Child" or "youth" means any person under 18 years of age.

17 (7) — (a) "Child abuse or neglect" means:

18 (i) — actual physical or psychological harm to a child;

19 (ii) — substantial risk of physical or psychological harm to a child; or

20 (iii) — abandonment.

21 (b) — (i) The term includes:

22 (A) — actual physical or psychological harm to a child or substantial risk of physical or psychological
23 harm to a child by the acts or omissions of a person responsible for the child's welfare;

24 (B) — exposing a child to the criminal distribution of dangerous drugs, as prohibited by 45-9-101, the
25 criminal production or manufacture of dangerous drugs, as prohibited by 45-9-110, or the operation of an
26 unlawful clandestine laboratory, as prohibited by 45-9-132; or

27 (C) — any form of child sex trafficking or human trafficking.

28 (ii) — For the purposes of this subsection (7), "dangerous drugs" means the compounds and

substances described as dangerous drugs in Schedules I through IV in Title 50, chapter 32, part 2.

(c) — In proceedings under this chapter in which the federal Indian Child Welfare Act or the Montana Indian Child Welfare Act provided for in Title 41, chapter 3, part 13, are applicable, this term has the same meaning as "serious emotional or physical damage to the child" as used in 25 U.S.C. 1912(f).

(d) — The term does not include:

(i) — self-defense, defense of others, or action taken to prevent the child from self-harm that does not constitute physical or psychological harm to a child; or

(ii) — a youth not receiving supervision solely because of parental inability to control the youth's behavior.

(8) — "Child protection specialist" means an employee of the department who investigates allegations of child abuse, neglect, and endangerment and has been certified pursuant to 41-3-127.

(9) — "Concurrent planning" means to work toward reunification of the child with the family while at the same time developing and implementing an alternative permanent plan.

(10) — "Decline to prosecute" means a decision not to file criminal charges based on the matter reported by the department or investigation by law enforcement for any reason, including but not limited to insufficient evidence.

(11) — "Department" means the department of public health and human services provided for in 2-15-2201.

(12) — "Family engagement meeting" means a meeting that involves family members in either developing treatment plans or making placement decisions, or both.

(13) — "Indian child" has the meaning provided in 41-3-1303.

(14) — "Indian child's tribe" has the meaning provided in 41-3-1303.

(15) — "Indian custodian" has the meaning provided in 41-3-1303.

(16) — "Indian tribe" has the meaning provided in 41-3-1303.

(17) — "Limited emancipation" means a status conferred on a youth by a court in accordance with 41-1-503 under which the youth is entitled to exercise some but not all of the rights and responsibilities of a person who is 18 years of age or older.

(18) — "Parent" means a biological or adoptive parent or stepparent.

1 (19) — "Parent-child legal relationship" means the legal relationship that exists between a child and the
2 child's birth or adoptive parents, as provided in Title 40, chapter 6, part 2, unless the relationship has been
3 terminated by competent judicial decree as provided in 40-6-234, Title 42, or part 6 of this chapter.

4 (20) — "Permanent placement" means reunification of the child with the child's parent, adoption,
5 placement with a legal guardian, placement with a fit and willing relative, or placement in another planned
6 permanent living arrangement until the child reaches 18 years of age.

7 (21) — "Physical abuse" means an intentional act, an intentional omission, or gross negligence
8 resulting in substantial skin bruising, internal bleeding, substantial injury to skin, subdural hematoma, burns,
9 bone fractures, extreme pain, permanent or temporary disfigurement, impairment of any bodily organ or
10 function, or death.

11 (22) — "Physical neglect" means:

12 (a) — failure to provide basic necessities, including but not limited to appropriate and adequate
13 nutrition, protective shelter from the elements, and appropriate clothing related to weather conditions;

14 (b) — failure to provide cleanliness and general supervision, or both;

15 (c) — exposing or allowing the child to be exposed to an unreasonable physical or psychological risk
16 to the child;

17 (d) — allowing sexual abuse or exploitation of the child; or

18 (e) — causing malnutrition or a failure to thrive.

19 (23) — "Physical or psychological harm to a child" means the harm that occurs whenever the parent or
20 other person responsible for the child's welfare inflicts or allows to be inflicted on the child physical abuse,
21 physical neglect, or psychological abuse or neglect.

22 (24) — (a) "Protective services" means services provided by the department:

23 (i) — to enable a child alleged to have been abused or neglected to remain safely in the home;

24 (ii) — to enable a child alleged to have been abused or neglected who has been removed from the
25 home to safely return to the home; or

26 (iii) — to achieve permanency for a child adjudicated as a youth in need of care when circumstances
27 and the best interests of the child prevent reunification with parents or a return to the home.

28 (b) — The term includes emergency protective services provided pursuant to 41-3-301, written

prevention plans provided pursuant to 41-3-302, and court-ordered protective services provided pursuant to parts 4 and 6 of this chapter.

(25) — (a) "Psychological abuse or neglect" means severe maltreatment, through acts or omissions, that is injurious to the child's intellectual or psychological capacity to function and that is identified as psychological abuse or neglect by a licensed psychologist, a licensed professional counselor, a licensed clinical social worker, a licensed psychiatrist, a licensed pediatrician, or a licensed advanced practice registered nurse with a focused practice in psychiatry.

(b) — The term includes but is not limited to the commission of acts of violence against another person residing in the child's home.

(c) — The term may not be construed to hold a victim responsible for failing to prevent the crime against the victim.

(26) — "Qualified expert witness" as used in cases involving an Indian child in proceedings subject to the federal Indian Child Welfare Act or the Montana Indian Child Welfare Act provided for in Title 41, chapter 3, part 13, means:

(a) — a member of the Indian child's tribe who is recognized by the tribal community as knowledgeable in tribal customs as they pertain to a family organization and child-rearing practices;

(b) — a lay expert witness who has substantial experience in the delivery of child and family services to Indians and extensive knowledge of prevailing social and cultural standards and child-rearing practices within the Indian child's tribe; or

(c) — a professional person who has substantial education and experience in providing services to children and families and who possesses significant knowledge of and experience with Indian culture, family structure, and child-rearing practices in general.

(27) — "Qualified individual" means a trained professional or licensed clinician who:

(a) — has expertise in the therapeutic needs assessment used for placement of youth in a therapeutic group home;

(b) — is not an employee of the department; and

(c) — is not connected to or affiliated with any placement setting in which children are placed.

(28) — "Reasonable cause to suspect" means cause that would lead a reasonable person to believe

1 that child abuse or neglect may have occurred or is occurring, based on all the facts and circumstances known
2 to the person.

3 (29) — "Residential setting" means an out-of-home placement where the child typically resides for
4 longer than 30 days for the purpose of receiving food, shelter, security, guidance, and, if necessary, treatment.

5 (30) — "Safety and risk assessment" means an evaluation by a child protection specialist following an
6 initial report of child abuse or neglect to assess the following:

7 (a) — the existing threat or threats to the child's safety;

8 (b) — the protective capabilities of the parent or guardian;

9 (c) — any particular vulnerabilities of the child;

10 (d) — any interventions required to protect the child; and

11 (e) — the likelihood of future physical or psychological harm to the child.

12 (31) — (a) "Sexual abuse" means the commission of sexual assault, sexual intercourse without
13 consent, aggravated sexual intercourse without consent, indecent exposure, sexual abuse, ritual abuse of a
14 minor, or incest, as described in Title 45, chapter 5.

15 (b) — Sexual abuse does not include any necessary touching of an infant's or toddler's genital area
16 while attending to the sanitary or health care needs of that infant or toddler by a parent or other person
17 responsible for the child's welfare.

18 (32) — "Sexual exploitation" means:

19 (a) — allowing, permitting, or encouraging a child to engage in a prostitution offense, as described in
20 45-5-601;

21 (b) — allowing, permitting, or encouraging sexual abuse of children as described in 45-5-625; or

22 (c) — allowing, permitting, or encouraging sex trafficking as described in 45-5-702, 45-5-705, 45-5-
23 706, or 45-5-711.

24 (33) — "Therapeutic needs assessment" means an assessment performed by a qualified individual
25 within 30 days of placement of a child in a therapeutic group home that:

26 (a) — assesses the strengths and needs of the child using an age-appropriate, evidence-based,
27 validated, functional assessment tool;

28 (b) — determines whether the needs of the child can be met with family members or through

1 placement in a youth foster home or, if not, which appropriate setting would provide the most effective and
2 appropriate level of care for the child in the least restrictive environment and be consistent with the short-term
3 and long-term goals for the child as specified in the child's permanency plan; and

4 (c) — develops a list of child-specific short-term and long-term mental and behavioral health goals.

5 (34) — "Treatment plan" means a written agreement between the department and the parent or
6 guardian or a court order that includes action that must be taken to resolve the condition or conduct of the
7 parent or guardian that resulted in the need for protective services for the child. The treatment plan may involve
8 court services, the department, and other parties, if necessary, for protective services.

9 (35) — (a) "Withholding of medically indicated treatment" means the failure to respond to an infant's
10 life-threatening conditions by providing treatment, including appropriate nutrition, hydration, and medication,
11 that, in the treating physician's or physicians' reasonable medical judgment, will be most likely to be effective in
12 ameliorating or correcting the conditions.

13 (b) — The term does not include the failure to provide treatment, other than appropriate nutrition,
14 hydration, or medication, to an infant when, in the treating physician's or physicians' reasonable medical
15 judgment:

16 (i) — the infant is chronically and irreversibly comatose;

17 (ii) — the provision of treatment would:

18 (A) — merely prolong dying;

19 (B) — not be effective in ameliorating or correcting all of the infant's life-threatening conditions; or

20 (C) — otherwise be futile in terms of the survival of the infant; or

21 (iii) — the provision of treatment would be virtually futile in terms of the survival of the infant and the
22 treatment itself under the circumstances would be inhumane. For purposes of this subsection (35), "infant"
23 means an infant less than 1 year of age or an infant 1 year of age or older who has been continuously
24 hospitalized since birth, who was born extremely prematurely, or who has a long-term disability. The reference
25 to less than 1 year of age may not be construed to imply that treatment should be changed or discontinued
26 when an infant reaches 1 year of age or to affect or limit any existing protections available under state laws
27 regarding medical neglect of children 1 year of age or older.

28 (36) — "Youth in need of care" means a youth who has been adjudicated or determined, after a

1 hearing, to be or to have been abused, neglected, or abandoned. (Terminates June 30, 2025—sec. 55, Ch. 716,
2 L. 2023.)

3 **41-3-102. (~~Effective July 1, 2025~~) Definitions.** As used in this chapter, the following definitions
4 apply:

5 (1) (a) "Abandon", "abandoned", and "abandonment" mean:

6 (i) leaving a child under circumstances that make reasonable the belief that the parent does not
7 intend to resume care of the child in the future;

8 (ii) willfully surrendering physical custody for a period of 6 months and during that period not
9 manifesting to the child and the person having physical custody of the child a firm intention to resume physical
10 custody or to make permanent legal arrangements for the care of the child;

11 (iii) that the parent is unknown and has been unknown for a period of 90 days and that reasonable
12 efforts to identify and locate the parent have failed; or

13 (iv) the voluntary surrender, as defined in 40-6-402, by a parent of a newborn who is no more than
14 30 days old to an emergency services provider, as defined in 40-6-402.

15 (b) The terms do not include the voluntary surrender of a child to the department solely because of
16 parental inability to access publicly funded services.

17 (2) "A person responsible for a child's welfare" means:

18 (a) the child's parent, guardian, or foster parent or an adult who resides in the same home in which
19 the child resides;

20 (b) a person providing care in a day-care facility;

21 (c) an employee of a public or private residential institution, facility, home, or agency; or

22 (d) any other person responsible for the child's welfare in a residential setting.

23 (3) "Abused or neglected" means the state or condition of a child who has suffered child abuse or
24 neglect.

25 (4) (a) "Adequate health care" means any medical care or nonmedical remedial health care
26 recognized by an insurer licensed to provide disability insurance under Title 33, including the prevention of the
27 withholding of medically indicated treatment or medically indicated psychological care permitted or authorized
28 under state law.

(b) This chapter may not be construed to require or justify a finding of child abuse or neglect for the sole reason that a parent or legal guardian, because of religious beliefs, does not provide adequate health care for a child. However, this chapter may not be construed to limit the administrative or judicial authority of the state to ensure that medical care is provided to the child when there is imminent substantial risk of serious harm to the child.

(5) "Best interests of the child" means the physical, mental, and psychological conditions and needs of the child and any other factor considered by the court to be relevant to the child.

(6) "Case determination" means a determination to a specified degree of proof, made by the department after the investigation is completed, on whether the reported act of child abuse or neglect occurred. Case determinations are limited to the general categories of substantiated, unsubstantiated, and unfounded.

~~(6)(7)~~ "Child" or "youth" means any person under 18 years of age.

~~(7)(8)~~ (a) "Child abuse or neglect" means:

- (i) actual physical or psychological harm to a child;
- (ii) substantial risk of physical or psychological harm to a child; or
- (iii) abandonment.

(b) (i) The term includes:

- (A) actual physical or psychological harm to a child or substantial risk of physical or psychological harm to a child by the acts or omissions of a person responsible for the child's welfare;
- (B) exposing a child to the criminal distribution of dangerous drugs, as prohibited by 45-9-101, the criminal production or manufacture of dangerous drugs, as prohibited by 45-9-110, or the operation of an unlawful clandestine laboratory, as prohibited by 45-9-132; or
- (C) any form of child sex trafficking or human trafficking.

(ii) For the purposes of this subsection ~~(7)~~ (8), "dangerous drugs" means the compounds and substances described as dangerous drugs in Schedules I through IV in Title 50, chapter 32, part 2.

(c) In proceedings under this chapter in which the federal Indian Child Welfare Act is applicable, this term has the same meaning as "serious emotional or physical damage to the child" as used in 25 U.S.C. 1912(f).

(d) The term does not include:

1 (i) self-defense, defense of others, or action taken to prevent the child from self-harm that does
2 not constitute physical or psychological harm to a child; or

3 (ii) a youth not receiving supervision solely because of parental inability to control the youth's
4 behavior.

5 ~~(8)~~(9) "Child protection specialist" means an employee of the department who investigates allegations
6 of child abuse, neglect, and endangerment and has been certified pursuant to 41-3-127.

7 ~~(9)~~(10) "Concurrent planning" means to work toward reunification of the child with the family while at
8 the same time developing and implementing an alternative permanent plan.

9 ~~(40)~~(11) "Decline to prosecute" means a decision not to file criminal charges based on the matter
10 reported by the department or investigation by law enforcement for any reason, including but not limited to
11 insufficient evidence.

12 ~~(41)~~(12) "Department" means the department of public health and human services provided for in 2-15-
13 2201.

14 ~~(42)~~(13) "Family engagement meeting" means a meeting that involves family members in either
15 developing treatment plans or making placement decisions, or both.

16 ~~(43)~~(14) "Indian child" means any unmarried person who is under 18 years of age and who is either:

17 (a) a member of an Indian tribe; or

18 (b) eligible for membership in an Indian tribe and is the biological child of a member of an Indian
19 tribe.

20 ~~(44)~~(15) "Indian child's tribe" means:

21 (a) the Indian tribe in which an Indian child is a member or eligible for membership; or

22 (b) in the case of an Indian child who is a member of or eligible for membership in more than one
23 Indian tribe, the Indian tribe with which the Indian child has the more significant contacts.

24 ~~(45)~~(16) "Indian custodian" means any Indian person who has legal custody of an Indian child under
25 tribal law or custom or under state law or to whom temporary physical care, custody, and control have been
26 transferred by the child's parent.

27 ~~(46)~~(17) "Indian tribe" means any Indian tribe, band, nation, or other organized group or community of
28 Indians recognized by:

1 (a) the state of Montana; or

2 (b) the United States secretary of the interior as being eligible for the services provided to Indians
3 or because of the group's status as Indians, including any Alaskan native village as defined in federal law.

4 ~~(17)~~(18)"Limited emancipation" means a status conferred on a youth by a court in accordance with 41-
5 1-503 under which the youth is entitled to exercise some but not all of the rights and responsibilities of a person
6 who is 18 years of age or older.

7 ~~(18)~~(19)"Parent" means a biological or adoptive parent or stepparent.

8 ~~(19)~~(20)"Parent-child legal relationship" means the legal relationship that exists between a child and the
9 child's birth or adoptive parents, as provided in Title 40, chapter 6, part 2, unless the relationship has been
10 terminated by competent judicial decree as provided in 40-6-234, Title 42, or part 6 of this chapter.

11 ~~(20)~~(21)"Permanent placement" means reunification of the child with the child's parent, adoption,
12 placement with a legal guardian, placement with a fit and willing relative, or placement in another planned
13 permanent living arrangement until the child reaches 18 years of age.

14 ~~(21)~~(22)"Physical abuse" means an intentional act, an intentional omission, or gross negligence
15 resulting in substantial skin bruising, internal bleeding, substantial injury to skin, subdural hematoma, burns,
16 bone fractures, extreme pain, permanent or temporary disfigurement, impairment of any bodily organ or
17 function, or death.

18 ~~(22)~~(23)"Physical neglect" means:

19 (a) failure to provide basic necessities, including but not limited to appropriate and adequate
20 nutrition, protective shelter from the elements, and appropriate clothing related to weather conditions;

21 (b) failure to provide cleanliness and general supervision, or both;

22 (c) exposing or allowing the child to be exposed to an unreasonable physical or psychological risk
23 to the child;

24 (d) allowing sexual abuse or exploitation of the child; or

25 (e) causing malnutrition or a failure to thrive.

26 ~~(23)~~(24)"Physical or psychological harm to a child" means the harm that occurs whenever the parent or
27 other person responsible for the child's welfare inflicts or allows to be inflicted on the child physical abuse,
28 physical neglect, or psychological abuse or neglect.

1 ~~(24)~~(25)(a) "Protective services" means services provided by the department:

2 (i) to enable a child alleged to have been abused or neglected to remain safely in the home;

3 (ii) to enable a child alleged to have been abused or neglected who has been removed from the
4 home to safely return to the home; or

5 (iii) to achieve permanency for a child adjudicated as a youth in need of care when circumstances
6 and the best interests of the child prevent reunification with parents or a return to the home.

7 (b) The term includes emergency protective services provided pursuant to 41-3-301, written
8 prevention plans provided pursuant to 41-3-302, and court-ordered protective services provided pursuant to
9 parts 4 and 6 of this chapter.

10 ~~(25)~~(26)(a) "Psychological abuse or neglect" means severe maltreatment, through acts or omissions,
11 that is injurious to the child's intellectual or psychological capacity to function and that is identified as
12 psychological abuse or neglect by a licensed psychologist, a licensed professional counselor, a licensed clinical
13 social worker, a licensed psychiatrist, a licensed pediatrician, or a licensed advanced practice registered nurse
14 with a focused practice in psychiatry.

15 (b) The term includes but is not limited to the commission of acts of violence against another
16 person residing in the child's home.

17 (c) The term may not be construed to hold a victim responsible for failing to prevent the crime
18 against the victim.

19 ~~(26)~~(27)"Qualified expert witness" as used in cases involving an Indian child in proceedings subject to
20 the federal Indian Child Welfare Act means:

21 (a) a member of the Indian child's tribe who is recognized by the tribal community as
22 knowledgeable in tribal customs as they pertain to family organization and child-rearing practices;

23 (b) a lay expert witness who has substantial experience in the delivery of child and family services
24 to Indians and extensive knowledge of prevailing social and cultural standards and child-rearing practices within
25 the Indian child's tribe; or

26 (c) a professional person who has substantial education and experience in providing services to
27 children and families and who possesses significant knowledge of and experience with Indian culture, family
28 structure, and child-rearing practices in general.

1 ~~(27)~~(28)"Qualified individual" means a trained professional or licensed clinician who:

2 (a) has expertise in the therapeutic needs assessment used for placement of youth in a
3 therapeutic group home;

4 (b) is not an employee of the department; and

5 (c) is not connected to or affiliated with any placement setting in which children are placed.

6 ~~(28)~~(29)"Reasonable cause to suspect" means cause that would lead a reasonable person to believe
7 that child abuse or neglect may have occurred or is occurring, based on all the facts and circumstances known
8 to the person.

9 ~~(29)~~(30)"Residential setting" means an out-of-home placement where the child typically resides for
10 longer than 30 days for the purpose of receiving food, shelter, security, guidance, and, if necessary, treatment.

11 ~~(30)~~(31)"Safety and risk assessment" means an evaluation by a child protection specialist following an
12 initial report of child abuse or neglect to assess the following:

13 (a) the existing threat or threats to the child's safety;

14 (b) the protective capabilities of the parent or guardian;

15 (c) any particular vulnerabilities of the child;

16 (d) any interventions required to protect the child; and

17 (e) the likelihood of future physical or psychological harm to the child.

18 ~~(31)~~(32)(a) "Sexual abuse" means the commission of sexual assault, sexual intercourse without
19 consent, aggravated sexual intercourse without consent, indecent exposure, sexual abuse, ritual abuse of a
20 minor, or incest, as described in Title 45, chapter 5.

21 (b) Sexual abuse does not include any necessary touching of an infant's or toddler's genital area
22 while attending to the sanitary or health care needs of that infant or toddler by a parent or other person
23 responsible for the child's welfare.

24 ~~(32)~~(33)"Sexual exploitation" means:

25 (a) allowing, permitting, or encouraging a child to engage in a prostitution offense, as described in
26 45-5-601;

27 (b) allowing, permitting, or encouraging sexual abuse of children as described in 45-5-625; or

28 (c) allowing, permitting, or encouraging sex trafficking as described in 45-5-702, 45-5-705, 45-5-

1 706, or 45-5-711.

2 (34) "Substantiated" means that the department has investigated the reported act of child abuse or
3 neglect and determined by a preponderance of the evidence that an act of child abuse or neglect occurred.

4 ~~(33)~~(35) "Therapeutic needs assessment" means an assessment performed by a qualified individual
5 within 30 days of placement of a child in a therapeutic group home that:

6 (a) assesses the strengths and needs of the child using an age-appropriate, evidence-based,
7 validated, functional assessment tool;

8 (b) determines whether the needs of the child can be met with family members or through
9 placement in a youth foster home or, if not, which appropriate setting would provide the most effective and
10 appropriate level of care for the child in the least restrictive environment and be consistent with the short-term
11 and long-term goals for the child as specified in the child's permanency plan; and

12 (c) develops a list of child-specific short-term and long-term mental and behavioral health goals.

13 ~~(34)~~(36) "Treatment plan" means a written agreement between the department and the parent or
14 guardian or a court order that includes action that must be taken to resolve the condition or conduct of the
15 parent or guardian that resulted in the need for protective services for the child. The treatment plan may involve
16 court services, the department, and other parties, if necessary, for protective services.

17 (37) "Unfounded" means that the department has investigated the reported act of child abuse or
18 neglect and there is no evidence to corroborate the report.

19 (38) "Unsubstantiated" means that the department has investigated the reported act of child abuse
20 or neglect and is unable to determine by a preponderance of the evidence that an act of child abuse or neglect
21 occurred.

22 ~~(35)~~(39)(a) "Withholding of medically indicated treatment" means the failure to respond to an infant's
23 life-threatening conditions by providing treatment, including appropriate nutrition, hydration, and medication,
24 that, in the treating physician's or physicians' reasonable medical judgment, will be most likely to be effective in
25 ameliorating or correcting the conditions.

26 (b) The term does not include the failure to provide treatment, other than appropriate nutrition,
27 hydration, or medication, to an infant when, in the treating physician's or physicians' reasonable medical
28 judgment:

(i) the infant is chronically and irreversibly comatose;

(ii) the provision of treatment would:

(A) merely prolong dying;

(B) not be effective in ameliorating or correcting all of the infant's life-threatening conditions; or

(C) otherwise be futile in terms of the survival of the infant; or

(iii) the provision of treatment would be virtually futile in terms of the survival of the infant and the treatment itself under the circumstances would be inhumane. For purposes of this subsection ~~(35)~~ (39), "infant" means an infant less than 1 year of age or an infant 1 year of age or older who has been continuously hospitalized since birth, who was born extremely prematurely, or who has a long-term disability. The reference to less than 1 year of age may not be construed to imply that treatment should be changed or discontinued when an infant reaches 1 year of age or to affect or limit any existing protections available under state laws regarding medical neglect of children 1 year of age or older.

~~(36)~~(40)"Youth in need of care" means a youth who has been adjudicated or determined, after a hearing, to be or to have been abused, neglected, or abandoned."

- END -